

Jayant Singh v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 24 August 2023 · 2023:AHC-LKO:56668-DB
· Writ-C No. 7126 of 2023 · **Disposed; consider connection on clause 4.4 or Annexure 4.2 papers**

HEADNOTE

Where a new-connection applicant has filed neither ownership papers under clause 4.4 of the U.P. Electricity Supply Code, 2005 nor an indemnity bond in Annexure 4.2, the writ is disposed by directing the Executive Engineer to proceed and consider the application within two weeks of those documents being submitted.

FACTUAL SUMMARY

Jayant Singh applied for an electricity connection and filed a writ before the Lucknow Bench when the connection was not given. The Power Corporation stated that he had produced neither documents of ownership under clause 4.4 of the U.P. Electricity Supply Code, 2005 nor an indemnity bond in Annexure 4.2. Singh told the Court he would furnish one or the other. The officer concerned was the Executive Engineer, Vidyut Vitran Khand Ist, Ayodhya.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

ownership documents for a new connection

HOLDING

The licensee having stated that the applicant had filed neither ownership documents under clause 4.4 nor an Annexure 4.2 indemnity bond, and the applicant having undertaken to file one or the other, the Executive Engineer shall, if those papers are submitted within two weeks, proceed and consider the connection application within two weeks thereafter. ¶ 3-5

HOLDING-UNIT · UP-2005::Annexure 4.2

indemnity bond as an alternative to ownership papers

HOLDING

An indemnity bond in Annexure 4.2 stands, on the corporation's statement and the applicant's undertaking, as an alternative to clause 4.4 ownership documents for the application to be taken up for consideration. ¶ 3-5

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents

The writ was disposed without granting the connection. The Executive Engineer was directed only to proceed and consider the application if clause 4.4 ownership documents or an Annexure 4.2 indemnity bond were filed within two weeks. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY CONNECTION MUST BE RELEASED ONCE THE DOCUMENTS ARE FILED

The Executive Engineer was left to proceed and consider the application; the Court made no merits grant or refusal.
¶ 5-6

